

6.	IHC California v. Bravo Tile & Stone, Inc. 26-1547692	On August 12, 2026, this Court issued an Order to Show Cause re Contempt, directed to defendants Bravo Tile & Stone, Inc. ("Bravo") and Ahmet Onerbay ("Onerbay"), for a hearing on 9/17/26. Neither Bravo nor Onerbay have filed any response thereto. However, Plaintiff IHC California LLC ("Plaintiff") has failed to show adequate service for notice of this hearing. Unless the citee has concealed himself from the court, he must be personally served with both the affidavit upon which the OSC is based, and the order to show cause; otherwise, the court lacks jurisdiction to proceed. (<i>Cedars-Sinai Imaging Medical Group v. Superior Court</i> (2000) 83 Cal.App.4th 1281, 1286–1287.) Here, Plaintiff has presented evidence of personal service only for the Order itself - not also for the <i>ex parte</i> application and supporting papers which led to issuance of the Order to Show Cause. (ROAs 92 and 104.) Nor does it appear that the 8/11/26 <i>ex parte</i> application itself was properly served. (See <i>C.C.P. § 1010.6(c)(2)</i> [unrepresented party may consent to electronic service] and <i>CRC 2.251(c)(3)(B)</i> [self-represented parties are to be served by non-electronic methods unless they affirmatively consent to electronic service].) The same defect appears in the proofs of service for the prior <i>ex parte</i> which resulted in issuance of the 6/18/26 Order. The hearing is therefore CONTINUED to October 22, 2026. Plaintiff is to timely personally serve both defendants with a Notice of Continued Hearing, along with copies of the Court's 8/12/26 Order, and all of the <i>ex parte</i> papers submitted on 8/11/26. Plaintiff will need to address the validity of the orders at issue, in light of that service defect, for the continued hearing date. <i>Counsel for Plaintiff is to give notice of this ruling.</i>
7.	Soteropoulos v. FCA US LLC 25-1492568	Before the Court is a demurrer and motion to strike filed by defendants FCA US LLC and Orange Coast Chrysler Jeep Dodge Ram Fiat (collectively, Defendants) as to portions of the first amended complaint (FAC) filed by plaintiff Paul Soteropoulos (Plaintiff). For the reasons set forth below, the demurrer is SUSTAINED without leave to amend as to the 5th cause of action and OVERRULED as to the 6th cause of action; the motion to strike is GRANTED without leave to amend as to the punitive damages claim and DENIED as to the request for civil penalties. Demurrer <u>5th cause of action</u>, fraudulent inducement – concealment: Plaintiff fails to allege fraud with the requisite specificity, including sufficient facts giving rise to a duty to disclose. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40 [elements]; <i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157 [particularity requirement].) Plaintiff failed to address the fraud claim at all in the opposition, thereby abandoning the claim. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal. App. 4th 1, 20; <i>Westside Center Associates v.</i>

		<i>Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424.) The demurrer is thus SUSTAINED without leave to amend as to this cause of action. <u>6th cause of action</u>, negligent repair: The economic loss rule does not apply in cases involving the negligent performance of services that results in foreseeable economic loss. (<i>North American Chemical Co. v. Superior Court</i> (1997) 59 Cal.App.4th 764, 777, 781-785; <i>Sabicer v. Ford Motor Company</i> (C.D. Cal. 2019) 362 F.Supp.3d 837, 840; <i>Madison v. Ford Motor Company</i> (E.D. Cal., Aug. 6, 2019, No. 2:19-CV-00853 WBS DB) 2019 WL 3562386, at *2.) Further, Plaintiffs do not allege that repair obligations arose out of a contract between Plaintiff and defendant Orange Coast Chrysler Jeep Dodge Ram Fiat. Thus, it cannot be said that Plaintiff's negligent repair claim is barred by the economic loss rule. The demurrer is thus OVERRULED as to this cause of action. Motion to Strike <u>Punitive damages</u>: As discussed above, Plaintiff has not alleged a viable fraud cause of action. Punitive damages are thus not available based on the fraud claim. Plaintiff's remaining allegations relate to statutory violations under the Song Beverly Act. By seeking a civil penalty under <i>Civil Code section 1794</i>, Plaintiff waived punitive damages under Civil Code section 3294. (<i>Troensegaard v. Silvercrest Industries, Inc.</i> (1985) 175 Cal.App.3d 218, 228.) The motion is therefore GRANTED without leave to amend as to punitive damages. <u>Civil penalties</u>: The pre-suit notice requirements under <i>Code of Civil Procedure section 871.24, subdivision (k)</i> became operative on July 1, 2025. (<i>Code of Civ. Proc. § 871.24, subd. (k).</i>) Here, this action was initiated on June 24, 2025, before the effective date of the statute. (<i>McClung v. Employment Development Dept.</i> (2004) 34 Cal.4th 467, 475 [statutes operate prospectively only unless there is express language of retroactivity].) The motion is thus DENIED as to civil penalties. <i>Counsel for Defendant shall give notice of this ruling.</i>
8.	Andresen v. Watermeier 25-1507923	Before the Court is a demurrer and motion to strike filed by defendant David Watermeier as to the second amended complaint (SAC) filed by plaintiffs Jorin Andresen and Christina Compani. For the reasons set forth herein, the demurrer is OVERRULED and the motion to strike is DENIED. Proof of Service Defective Initially, the proof of service at ROA 26 is insufficient. Although the proof of service states that the documents were served by email, there is no email address listed to which the documents were sent. Demurrer